

NOTIFICATION OF EMERGENCY DETENTION

CASE NO. _____ DATE: _____ TIME: _____

THE STATE OF TEXAS

FOR THE BEST INTEREST AND PROTECTION OF: _____

DOB: _____ Race: _____ Gender: _____ Phone Number: _____

Address: _____

Now comes _____, a peace officer with _____,
(name of agency) of the State of Texas, and states as follows:

☐ I have reason to believe and do believe that _____ (person detained) evidences mental illness; **AND**

☐ I have reason to believe and do believe that the above-named person evidences a substantial risk of serious harm to himself/herself or others based on the person's behavior or evidence the person is experiencing severe emotional distress and deterioration or the person evidences an inability to recognize symptoms or appreciate the risks and benefits of treatment to the extent that the person cannot remain at liberty; **AND**

☐ I have reason to believe and do believe that the risk of harm is imminent unless the above-named person is immediately restrained.

1. My above-stated beliefs are based upon the following recent behavior, severe emotional distress and deterioration, overt acts, attempts, statements, or threats observed by me or reliably reported to me (may use attachments).

2. The names, addresses, phone numbers, and relationship to the above-named person or those persons who reported or observed recent behavior, acts, attempts, statements, or threats of the above-named person or relevant witnesses who witnessed the above-named person being detained are (if applicable):

Location of apprehension:

ADULT 65 YEARS OF AGE OR OLDER ☐ YES ☐ NO *If yes, age:* _____

CHILD 17 YEARS OF AGE OR YOUNGER ☐ YES ☐ NO *If yes, age:* _____

FOR A CHILD 17 YEARS OF AGE OR YOUNGER (if yes):

My belief the child is at risk of imminent serious harm unless immediately removed from the parents' custody is based on the above-stated facts showing the parents or guardians are presently unable to protect the child from imminent serious harm.

☐ I provided notice to the child's parent(s) or guardian(s) of my intention to file this notification.

☐ I was not able to provide notice to the child's parent(s) or guardian(s) of my intention to file this notification because:

Parent(s)/Guardian(s) Contact Information (if known): _____

USE OF RESTRAINT

Was the person physically restrained in any way? ☐ YES ☐ NO

If YES, reason for physical restraint: ☐ Officer Safety ☐ Person's Safety ☐ Other: _____

CALL ORIGINATED AT: ☐ Public Area ☐ Residence ☐ School/University ☐ Group Home ☐ Hospital ☐ Other _____

OBSERVATIONS/HISTORY If YES to any question below, provide additional information.

	YES	NO	UNK	NOTES
Harm to self or stating an intention to harm self?	☐	☐	☐	
Previous suicide attempt?	☐	☐	☐	
Harm to others or stating an intention to harm others?	☐	☐	☐	
Previous serious harm or injury to others?	☐	☐	☐	
Previous psychiatric hospital treatment?	☐	☐	☐	
Reported mental health diagnosis?	☐	☐	☐	
Prescribed psychiatric medications?	☐	☐	☐	
Current psychiatric medications taken?	☐	☐	☐	
Sleeping difficulty?	☐	☐	☐	
Substance Use Disorder?	☐	☐	☐	

TRANSPORTED TO: ☐ Hospital/Emergency Room ☐ Mental Health Facility ☐ Other _____

For the above reasons, I present this notification to seek temporary admission to the (name of facility) _____ inpatient mental health facility or hospital facility for the detention of (person detained) _____ on an emergency basis.

[If applicable] I have transferred the person detained to Emergency Medical Services Personnel (Name & Agency) _____ for transport on (date) ____/____/____ at (time) ____ .M., pursuant to a memorandum of understanding between agencies, and I have determined that transferring the person for transport is safe for both the person and the personnel.

PEACE OFFICER'S PRINTED NAME: _____ BADGE NO. _____

PEACE OFFICER'S SIGNATURE: _____

Address: _____ Zip Code: _____ Telephone: _____

A mental health facility or hospital emergency department may not require a peace officer or emergency medical services personnel to execute any form other than this form as a predicate to accepting for temporary admission a person detained by a peace officer under Section 573.001, Texas Health and Safety Code.